

Merchant Marine Circular

Panama Maritime Authority
General Directorate of Merchant Marine
Control and Compliance Department

MERCHANT MARINE CIRCULAR MMC-345

To: Ship-owners/operators, Legal Representatives of Panamanian Flagged Vessels, Panamanian Merchant Marine Consulates and Recognized Organizations (ROs) and all other stakeholders.

Subject: Ballast Water Management Convention 2004, Panama Policy.

Reference: a) **Law No. 41** of September 12 2016 adopting International Convention for the Control and Management of Ships' Ballast Water and Sediments, 2004;
b) **Resolution JD No.002-2017** of January 26, 2017;
c) **Resolution MEPC.296(72)** of April 13, 2018, adopted through Resolution No.107-OMI-206-DGMM dated 18 July 2019;
d) **Resolution MEPC. 297(72)** of April 13, 2018, adopted through Resolution No.107-OMI-207-DGMM dated 18 July 2019.
e) **Resolution MEPC.299(72)** of April 13, 2018, adopted through Resolution No.107-OMI-208-DGMM dated July 18, 2019;
f) **Resolution MEPC.325 (75)** dated November 20, 2020, adopted through Resolution No.107-OMI-247-DGMM dated December 14, 2021.
g) **Resolution A.1156 (32)** – Survey Guidelines under the Harmonized System of Survey and Certification (HSSC), 2021, adopted through Resolution No. 107-OMI-253-DGMM March 8, 2022.
h) **BWM.2/Circ.46** - Application of the BWM Convention to Mobile Offshore Units **(Only as Recommendation)**;
i) **BWM.2/Circ.40** - Issuance of Ballast Water Management Certificates prior to entry into force of the BWM Convention and Ballast Water Management Plans approved according to resolution A.868(20). **(Only as Recommendation)**
j) **BWM.2/Circ.52** - Guidance on entry or re-entry of ships into exclusive operation within waters under the jurisdiction of a single Party; **(Only as Recommendation)**
k) **Resolution MEPC. 287(71)** July 7, 2017 (Only as Recommendation)
l) **BWM.2/Circ.70**, November 1, 2018. **(Only as Recommendation)**
m) **Resolution MEPC. 300(72)** of April 13, 2018, Code for Approval of Ballast Water Management Systems (BWMS Code) entry into force of the associated amendments to the BWM Convention, adopted through Resolution No. 107-OMI-206-DGMM July 18, 2019.
n) **Resolution MEPC.127(53)** - Guidelines for ballast water management and development of ballast water management plans (G4) dated July 22,

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2005, amended by Resolution MEPC.306(73) dated October 26, 2018 as referred to in regulation B-1. **(Only as Recommendation)**

o) Unified interpretations to the BWM Convention – BWM.2/Circ.66/Rev.5 approved by MEPC 80 on July 13, 2023 **(Only As recommendation)**

p) Resolution MEPC.369(80) - Amendments to Appendix II of Ballast Water Management Convention (Ballast Record Book).

q) BWM.2/Circ.80 (Guidance on ballast water record-keeping and reporting) **(Only as Recommendation) (Only As recommendation)**

h) Resolution MEPC.372(80) – Guidelines for the use of Electronic Record Books under the BWM Convention.

i) Resolution MEPC 383(81) - Amendments to Regulations A-1 and B-2 (Use of electronic record books).

j) Resolution MEPC.387(81) - Interim Guidance on the application of the BWM Convention to ships operating in challenging water quality conditions. **(Only As recommendation).**

j) BWM.2-Circ.82 - Guidance for the temporary storage of treated sewage and / or grey water in ballast water tanks **(Only As recommendation).**

1. Purpose

- 1.1.** The purpose of this Merchant Marine Circular is to inform that the Republic of Panama submitted to the Secretary General of the International Maritime Organization, the accession of the Ballast Water Management Convention 2004, including a declaration in accordance with the recommendation contained in Resolution A.1088(28) on October 19, 2016, now superseded by the Resolution MEPC.287(71) of July 7, 2017; and that the Convention entered into force on **September 8, 2017**.
- 1.2.** Furthermore, it provides guidance and instructions to ensure compliance with the Ballast Water Management Convention 2004 adopted by the Republic of Panama by Law No. 41 of September 12, 2016, and the complementary IMO Resolutions and Circulars.
- 1.3.** As well as give additional guidance and instructions in line with the amendment to regulation B-3 of the BWM Convention decision of the Marine Environmental Protection Committee (MEPC session 71) on the approval of the draft amended regulation B-3 of the BWM Convention, which will be circulated to Member States for adoption during MEPC 72 scheduled to be held from April 9 -13, 2018; and the draft MEPC resolution on Determination of the date referred to in regulation B-3, as amended, of the BWM Convention, which the Secretary-General will circulate immediately upon entry into force of the Convention. As per the draft documents the MEPC has resolved that, in lieu of the implementation

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schedule recommended in resolution A.1088(28) and notwithstanding the schedule set forth in regulation B-3 of the Convention, the Parties to the Ballast Water Management Convention should implement the draft amended regulation B-3 contained therein, immediately after entry into force of the Convention, with a view to avoiding the creation of a dual treaty regimeduring the time period between the entry into force of the Convention and the entry into force of the amended regulation B-3.

2. Definitions

The following relevant definitions from the International Convention for the control and management of Ship's Ballast Water and Sediments, 2004 (article 1 and regulation A-1):

- 2.1. **"Active Substance"** means a substance or organism, including a virus or a fungus, that has a general or specific action on or against Harmful Aquatic Organisms and Pathogens.
- 2.2. **"Administration"** means the Government of the State under whose authority the ship is operating. With respect to a ship entitled to fly a flag of any State, the Administration is the Government of that State. With respect to floating platforms engaged in exploration and exploitation of the sea-bed and subsoil thereof adjacent to the coast over which the coastal State exercises sovereign rights for the purposes of exploration and exploitation of its natural resources, including Floating Storage Units (FSUs) and Floating Production Storage and Offloading Units (FPSOs), the Administration is the Government of the coastal State concerned.
- 2.3. **"Anniversary date"** means the day and the month of each year corresponding to the date of expiry of the Certificate,
- 2.4. **"Ballast Water"** means water with its suspended matter taken on board a ship to control trim, list, draught, stability or stresses of the ship.
- 2.5. **"Ballast Water Capacity"** means the total volumetric capacity of any tanks, spaces or compartments on a ship used for carrying, loading or discharging Ballast Water, including any multi-use tank, space or compartment designed to allow carriage of Ballast Water.
- 2.6. **"Ballast Water Management"** means mechanical, physical, chemical, and biological processes, either singularly or in combination, to remove, render harmless, or avoid the uptake or discharge of Harmful Aquatic Organisms and Pathogens within Ballast Water and Sediments.
- 2.7. **"BWRB"** means Ballast Water Record Book, that may be an electronic

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record system, or that may be integrated into another record book or system and, which shall at least contain the information specified in Appendix II of the BWM Convention.

- 2.8. **"BWMS Code"** means the Code for Approval of Ballast Water Management Systems adopted by resolution MEPC.300(72), as may be amended by the Organization, provided that such amendments are adopted and brought into force in accordance with article 19 of the Convention relating to amendment procedures applicable to the Annex.
- 2.9. **"Certificate"** means the International Ballast Water Management Certificate.
- 2.10. **"Challenging water quality (CWQ)"** refers to ambient uptake water having quality parameters (including but not limited to high total suspended solids, 2 or turbidity) that cause a properly installed, maintained and operated type-approved BWMS to be temporarily inoperable due to an operational limitation or an inability to meet operational demand
- 2.11. **"Committee"** means the Marine Environmental Protection Committee of the International Maritime Organization.
- 2.12. **"Company"** means the owner of the ship or any other organization or person such as the manager, or the bareboat charterer, who has assumed the responsibility for operation of the ship from the owner of the ship and who on assuming such responsibility has agreed to take over all the duties and responsibilities imposed by the International Safety Management Code.
- 2.13. **"Constructed"** in respect of a ship means a stage of construction where:
- 2.13.1. the keel is laid; or
 - 2.13.2. construction identifiable with the specific ship begins;
 - 2.13.3. assembly of the ship has commenced comprising at least 50 tonnes or 1 percent of the estimated mass of all structural material, whichever is less; or
 - 2.13.4. the ship undergoes a major conversion.
- 2.14. **"Convention"** means the International Convention for the Control and Management of Ships' Ballast Water and Sediments.
- 2.15. **"Electronic record book"** means a device or system, approved by the Administration, used to electronically record the entries for each ballast water operation as required under this Convention in lieu of a hard copy record book.

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- 2.16. **"Gross tonnage"** means the gross tonnage calculated in accordance with the tonnage measurement regulations contained in Annex I to the International Convention on Tonnage Measurement of Ships, 1969 or any successor Convention.
- 2.17. **"Harmful Aquatic Organisms and Pathogens"** means aquatic organisms or pathogens which, if introduced into the sea including estuaries, or into fresh water courses, may create hazards to the environment, human health, property or resources, impair biological diversity or interfere with other legitimate uses of such areas.
- 2.18. **"Major conversion"** means a conversion of a ship:
- 2.18.1. which changes its ballast water carrying capacity by 15 percent or greater, or
 - 2.18.2. which changes the ship type, or
 - 2.18.3. which, in the opinion of the Administration, is projected to prolong its life by ten years or more, or
 - 2.18.4. which results in modifications to its ballast water system other than component replacement-in-kind. Conversion of a ship to meet the provisions of regulation D-1 shall not be deemed to constitute a major conversion for the purpose of this Annex.
- 2.19. **"Sediments"** means matter settled out of Ballast Water within a ship.
- 2.20. **"Ship"** means a vessel of any type whatsoever operating in the aquatic environment and includes submersibles, floating craft, floating platforms, FSUs and FPSOs.

3. Applicability / Scope

- 3.1. In accordance with definition of a ship in Article 1.12, the Ballast Water Management Convention will apply to vessels of any type including submersibles, floating craft, floating platforms, FSUs and FPSOs.
- 3.2. All Panamanian flagged ships with dedicated ballast water tanks or spaces, shall comply with the following requirements:
- a) Ballast Water Management Plan developed as it is indicated in IMO Resolution MEPC 127(53) approved by this Administration.
 - b) Ballast Water Record Book
- 3.3. Panamanian flagged ships of 400 gross tonnage (GT) and above, shall carry onboard:
- a) International Ballast Water Management Certificate (IBWM Certificate), (excluding floating platforms, FSUs and FPSOs at the

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- location of operation)
- b) Ballast Water Management Plan (BWMP) approved by this Administration under IMO Resolution MEPC.127 (53), and
 - c) Ballast Water Record Book
- 3.4. As it is indicated in regulation A-3.5, the requirements of regulation B-3 “Ballast Water Management for Ships” (including D-2 standard), shall not apply to the discharge of Ballast Water and Sediments from a ship at the same location where the whole of that Ballast Water and those Sediments originated and provided that no mixing with unmanaged Ballast Water and Sediments from other areas has occurred. If mixing has occurred, the Ballast Water taken from other areas is subject to Ballast Water Management (regulation B-3).
- 3.5. Mobile offshore units including Mobile Offshore Drilling Units should be surveyed and issued with an International Ballast Water Management Certificate, according to regulations E-1 and E-2 of the Convention, as applicable, this is in line to the IMO guideline BWM.2/Circ.46 - Application of the BWM Convention to Mobile Offshore Units. As well as it is indicated SEUs and CSUs take on board ballast water and discharge it for transit to other areas. The transit ballast water and sediments remaining in the preload and operational ballast tanks of the mobile offshore units may be treated by an appropriately approved internal circulation method. Other methods of ballast water management, capable of providing the same level of protection to the environment, human health, property or resources as described in regulations B-3.1 to B-3.5 of the Convention, may also be acceptable and should be included into the Ship Ballast Water Management Plan.
- 3.6. For entry or re-entry into exclusive operation pursuant to articles 3.2(b) to 3.2(d), the guidelines contained in BWM.2/Circ.52/Rev.1 - Guidance on entry or re-entry of ships into exclusive operation within waters under the jurisdiction of a single Party, should be observed with respect to a number of situations (e.g. mobile offshore units, to visit a dry-dock among others).
- 3.7. According to Article 3.2 (a) and (f) the IBWMC shall not apply expressly to:
- 3.7.1. ships not designed or constructed to carry Ballast Water; and
 - 3.7.2. permanent Ballast Water in sealed tanks on ships, that is not subject to discharge
- 3.8. For vessels operating in jurisdictional waters in Panama, shall apply the Ballast Convention of article 3.2 (b) and rule A-3.5, the vessels must operate in a specific area (**Pacific or Atlantic**), and must apply for a Ballast Water Management Plan Approval (**BWMP**) and the International Ballast Water Management Certificate (**IBWMC**) approved by the Administration.



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For the issuance of the Ballast Water Management Certificate the following documentation must be submitted: Copy of the Operating License, the Copy of the Navigation Registry and the Certificate of Fitness must be indicated where the vessel will be operating in the Pacific or Atlantic area.

4. Ballast Water Management Systems (BWMS)

4.1. The Ballast Water Management Systems Type approved by other Administrations will be accepted on ships under Panama flag, provided it's been approved in accordance with the Code or Guidelines on the Type Approval process for BWMS as follows:

- 4.1.1. Resolution MEPC.125 (53) dated July 22, 2005 revoked by Res. MEPC.174 (58) dated October 10, 2008, with effective date 8 September 2017: for approvals until October 28, 2018, and **installed on ships prior October 28, 2020,**
- 4.1.2. Resolution MEPC.279 (70) "2016 Guidelines for approval of Ballast Water Management Systems (G8)" dated 28 October 2016: for approvals until October 12, 2019, and **installed on ships on or after October 28, 2020,**
- 4.1.3. Resolution MEPC.300 (72) "Code for approval of Ballast Water Management Systems (BWMS Code) dated 13 April 2018, for approvals on or after October 13, 2019 upon the entry into force of the associated amendments to the BWM Convention and **installed on ships on or after October 28, 2020.**

Note: for the purpose of technical requirements which a BWMS shall meet in order to obtain type approval, above indicated the word "**installed**" means the contractual date of delivery of the ballast water management system to the ship. In the absence of such a date, the word "**installed**" means the actual date of delivery of the ballast water management system to the ship (Ref. Res.MEPC.300(72)).

4.2. Manufacturers interested to obtain approval for their Ballast Water Management System (BWMS) by the Panama Maritime Authority may request a Recognition Certificate for the Ballast Water Management System (BWMS) through a legal representative located in Panama. This request is voluntary, and should be submitted to General Directorate of Merchant Marine with the following documents:

- 4.2.1. The list of system equipment limitations, if applicable;
- 4.2.2. Certificate of type approval from other Administration;



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- 4.2.3.** Additional supporting document, such as type approvals issued by Classification Societies;
 - 4.2.4.** Test results carried out by the other Administration and/or Classification Society, and
 - 4.2.5.** Official Payment Receipt for USD \$2,000.00
- 4.3.** Recognized Organizations (R.O.) should conduct an additional survey during sea trials of a Ballast Water Management System (BWMS) to confirm the operation and efficacy of the system.
- 4.4.** Ships involved in voyages that include ports in the United States or its jurisdictional waters, shall be fitted with Ballast Water Management Systems accepted by the United States Coast Guard (USCG) according to the timeline set by that Administration.
- 4.5.** Noting that Parties to the Ballast Water Management Convention are called to implement the draft amended regulation B-3, that has been approved by the Marine Environmental Protection Committee (MEPC) during its 71 session, through the Resolution MEPC.287(71) of July 7, 2017 – Implementation of the BWM Convention which superseded the resolution A.1088(28) of December 4, 2013, immediately after entry into force of the Convention, and as per Resolution MEPC.297(72), of April 13, 2018, stakeholders are informed that compliance with regulation D-2 is as follows for ships constructed:
 - 4.5.1.** before 2009 with any ballast water capacity from the applicable renewal survey as described in paragraph 3.7,
 - 4.5.2.** in or after 2009 and before 8 September 2017 with a ballast water capacity of less than 5000 m³ from the date of the applicable renewal survey described in paragraph 4.8,
 - 4.5.3.** in or after 2009 and before 2012 with a ballast water capacity of 5000 m³ or more from the date of the applicable renewal survey described in paragraph 4.8,
 - 4.5.4.** in or after 2012 and before 2017 with a ballast water capacity of 5000 m³ or more from the date of the applicable renewal survey described in paragraph 4.8,
- 4.6.** Ship constructed on or after September 8, 2017 shall conduct Ballast Water Management that at least meets the standard described in regulation D-2.
- 4.7.** In case of oil tankers of less than 150 gross tonnage, and every other ship less than of 400 gross tonnage constructed before 8 September 2017 with

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any ballast water ballast capacity, shall conduct Ballast Water Management that at least meets the standard described in regulation D-2 not later than 8 September 2024.

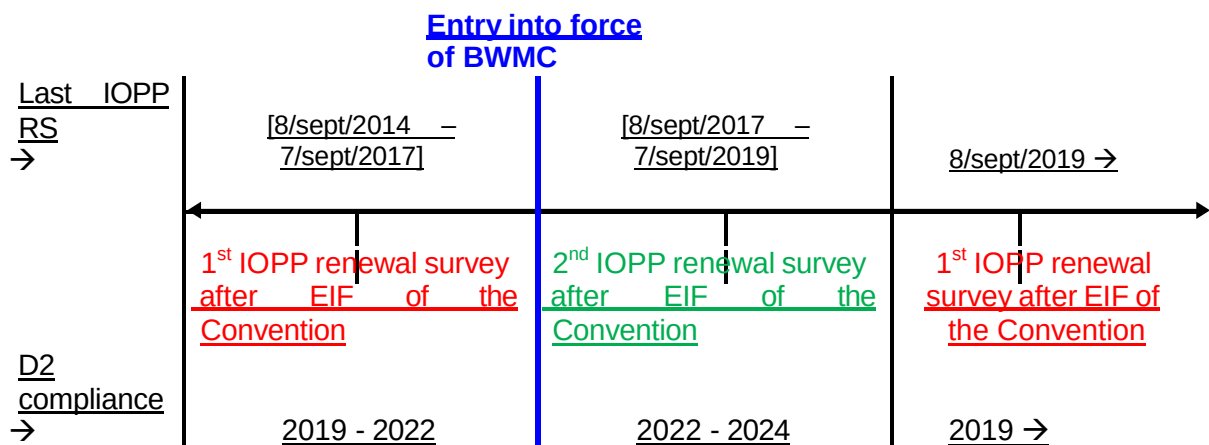
4.8. Installation of BWMS to comply with regulation D-2, shall be carried out after the entry into force of the Convention (September 8, 2017), **in case of ships constructed prior September 8, 2017**, as follows:

4.8.1. On the first renewal survey - 1st IOPP (R) following the date of entry into force of the Convention (8 September 2017), provided this renewal survey is completed on or after September 8, 2019, or

4.8.2. On the first renewal survey - 1st IOPP (RS) following the date of entry into force of the Convention (September 8, 2017), provided that this renewal survey is completed on or after September 8, 2014 but prior to September 8, 2017.

4.8.3. On the second renewal survey - 2nd IOPP (RS) following the date of entry into force of the Convention (September 8, 2017) if the first renewal survey - 1st IOPP (RS) following the date of entry into force of the Convention is completed prior to September 8, 2019, provided that the conditions of paragraph 4.8.2 are not met.

4.8.4. The following diagram has been prepared with the purpose to assist on the understanding of the paragraphs 4.8.1 to 4.8.3 above, on the implementation of D-2 standard on board ships constructed prior September 8, 2017.



Note: 1st and 2nd IOPP renewal surveys referred above are those surveys carried out after the entry into force of the Convention.

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5. Instructions for the commissioning test of Ballast Water Management Systems (BWMS)

5.1. Given the adoption of the Resolution MEPC.325 (75) amending regulation E-1 and its entry into force by **June 1, 2022**, delegated RO's are instructed to verify that:

5.1.1. At the initial survey before the ship is put in service or before the Certificate required under regulation E-2 or E-3 is issued for the first time a commissioning test has been conducted to validate the installation of any ballast water management system by demonstrating that its mechanical, physical, chemical and biological processes are working properly, taking into account the 2020 Guidance for the commissioning testing of ballast water management systems (BWM.2/Circ.70/Rev.1), as may be amended.

5.1.2. In case that the indicative analysis testing during commissioning test will result as non-complying, then a detailed analysis should be conducted, using as reference the Guideline content in BWM.2-Circ.42-Rev.2). Indicative analysis and Detail analysis are defined in BWM.2/Circ.42/Rev.2, as may be amended.

5.1.3. Laboratories used for detailed analysis (if required) should be accepted or approved by the ROs considering the requirements in the Code for the Recognized Organizations with regards to subcontracting and service suppliers.

5.1.4. Commissioning test should not apply to ships that had already a BWMS installed and certified for D-2 standard; **unless**, it undergoes an upgrade or change to a major component (those components that directly affect the ability of the system to meet the ballast water performance standard described in regulation D-2.) or newly installed BWMS. In these cases an additional survey shall be undertaken, this survey shall confirm that a commissioning test has been conducted to validate the installation of the system by demonstrating that its mechanical, physical, chemical and biological processes are working properly, taking into account the 2020 Guidance for the commissioning testing of ballast water management systems (BWM.2/Circ.70/Rev.1), as may be amended. (Refer to BWM.2/Circ.66/Rev.4 February 14, 2023)

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- 5.1.5.** In cases where the sampling analysis for indicative analysis test is not possible to conduct during the ship's commissioning test (e.g. salinity of ambient water is outside the System Design Limitations of the BWMS, lack of equipment for indicative analysis required), please inform to this Administration and the RO responsible for the IBWMC surveys to authorize the issuance a Conditional Certificate (refer to MMC.156).

6. Ballast Water Management Plan (BWMP) approval

- 6.1.** BWMP will be evaluated, revised and approved by SEGUMAR Offices, in accordance with the requirement of Regulation B-1 of the Ballast Water Management Convention; the BWMP should take into account IMO Resolution MEPC.127 (53) - Guidelines for ballast water management and development of ballast water management plans (G4) adopted by the IMO on July 22, 2005 as amended by Resolution MEPC.306(73) dated October 26, 2018.
- 6.2.** To apply for the approval, ship-owners and ship-operators as well as shipyards are invited to access the following link: [SEGUMAR 2.0](#), which is available since **November 17, 2025**. The link will allow users to upload the Ship's BWMP.
- 6.3.** The BWMP will be approved electronically (according MMC-355 – Use of Electronic Certificates Onboard paragraph 3.1.1 and electronic copy should be placed on board, and available for inspection at all times.
- 6.4.** From **15 March 2017**, this Administration will issue an electronic Statement for Ballast Water Management Plan to the Company, valid for one (1) month, upon receipt of the BWMP for review and approval.
- 6.5.** Ships not fitted with a BWMS or ships fitted with a BWMS which have been subject to modification should review and update their BWMP upon installation or modification, as per the requirements of Resolution MEPC.127 (53) of July 22, 2005 as amended by Resolution MEPC.306(73) dated 26 October 2018. In these cases, BWMP should be submitted to the Administration for re-approval in accordance with paragraph 6.2 of this circular.
Ballast Water Management Plans, previously approved by Recognized Organizations at their own behalf in accordance with Resolution A.868(20) adopted by the IMO on November 27, 1997, will remain valid and will be accepted by this Administration for the issuance of the IBWMC, until the plan requires revision due to the installation of a BWMS and the BWMP



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requires to be updated under IMO Resolution MEPC 127 (53) of 22 July 2005 as amended by Resolution MEPC.306(73) dated October 26, 2018.

- 6.6. Payments for BWMP approval can be made through wire transfer, bank details can be found in MMN-15/2022 - Payment Accounts.
- 6.7. The fees set for the approval of a BWMP is as follows:
 - 6.7.1. First time Evaluation or significant amendments (e.g. Procedures, Calculations, Equipment change's or replacement, Structural modifications.) USD 1,500.00 for each ship.
 - 6.7.2. Amendments due to Ship's Name Change, Call Sign, Gross Tonnage, etc., USD 500.00 for each ship.
 - 6.7.3. New application should be placed through following link: [SEGUMAR 2.0](#), in order to apply for any cases of the above paragraphs (6.8.1, 6.8.2).
- 6.8. BWMP developed as per the guideline on Resolution MEPC.127(53) adopted by the IMO on 22 July 2005, and amended through Resolution MEPC.306(73) adopted on 26 October 2018 must be evaluated and approved by this Administration, considering that this Guideline is applicable from the date of entry into force of the Convention, plans may include contingency measures developed taking into account guidelines developed by the Organization, (Refer to the Guidance on contingency measures under the BWM Convention - BWM.2/Circ.62). These contingency measures described may include procedures approved under D-1 standard.
- 6.9. Therefore, BWMP including procedures in line with standards D1 as contingency measure or other ballast water management methods in case ships already complying with D-2 standard are accepted. Ships operating or entering under jurisdictional waters of other States should request acceptance from the coastal state to implement D-1 standard as contingency measure as well as any other ballast water management method employed as a contingency measure.

Note: Given the IMO unified interpretations to the BWM Convention approved during MEPC 78 session - BWM.2/Circ.66/Rev.3 dated June 24, 2022, the contingency measures and other ballast water management methods used in addition to D-2 will only be reflected in the ship's Ballast Water Management Plan (BWMP)
- 6.10. Under special circumstances where vessels encounter challenging water quality, it is recommended that the BWMP incorporates guidelines from MEPC.387(81), which provides interim guidance on the application of the



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BWM Convention for ships operating in such conditions. The increasing number of ports enforcing environmental regulations highlights the importance of adhering to these guidelines. Should the vessel face challenges related to muddy or other adverse water conditions, the Master must promptly notify this Administration and local authorities to ensure compliance and operational safety.

- 6.11.** When vessels are required to use ballast tanks temporarily for treated sewage and/or grey water, it is advisable to include BWM.2/Circ.82 guidance within the BWMP. This circular supports the safe management and temporary storage of these waters in ballast tanks, accommodating the stricter regulations imposed at various ports. If such storage becomes necessary, the Master is obligated to inform this Administration and relevant local authorities, documenting each instance to maintain full transparency and compliance.
- 6.12.** In cases where the BWMP requires the inclusion of Resolution MEPC.387(81) or BWM.2/Circ.82, it must be promptly updated to incorporate these guidelines. This update is not considered as a significant or regular amendment, so no additional charges will apply. Once updated, please submit the revised BWMP via email to bwmp@segumar.com to ensure our system records are accurately updated.

7. International Ballast Water Management Certificate (IBWMC)

- 7.1.** Ships of 400 gross tonnage subject to the surveys required by the Convention (Regulation E-1) shall be issued after satisfactory completion, with the corresponding IBWMC (Regulation E-2).
- 7.2.** Recognized Organizations authorized to perform such surveys shall issue an Interim International Ballast Water Management Certificate (Interim IBWMC) valid for a period of maximum five (5) months, after satisfactory completion of the correspondent initial or renewal survey. An Interim International Ballast Water Management Certificate (Interim IBWMC) should only be issued following the BWMP approval by this office or upon submission of supporting evidence, such as a Statement of Fact (SOF) indicating the BWMP evaluation.
- 7.3.** Initial Survey (in connection with Certificates issued for the first time), may be performed prior the entry into force of the Convention, and Interim Certificates can be issued by the approved Recognized Organizations, to be valid from the date of entry into force of the Convention and valid for a period of maximum five (5) months.

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- 7.4. The ship's survey to issue the IBWMC for the first time is allowed to be carried out in conjunction with the annual survey of the statutory certificates in case of existing ships (for BWMS installation dates to comply with regulation D-2, refer to section 4 and 5 in this circular).
- 7.5. Application for full term Certificate IBWMC should be made through the new platform [SEGUMAR 2.0](#), which is available since **November 17, 2025**.
- 7.6. The full term IBWMC will be issued as an electronic certificate that can be printed by the user when needed. Refer to (MMC 355 – Use of Electronic Certificates Onboard paragraph 3.1.8). IBWMC endorsements shall be conducted by Recognized Organizations (refer to section 9 in this circular).
- 7.7. The Full-term International Ballast Water Management Certificate (IBWMC) will be issued by Segumar Offices (including branch offices) after receiving through the electronic system, copy of the following documents:
- 7.7.1. Interim Certificate issued by the Recognized Organization;
 - 7.7.2. Survey Report; and
 - 7.7.3. BWMP approval*
 - 7.7.4. Cargo Ship Safety Construction Certificate
 - 7.7.5. Official Payment receipt

*At this stage, plan should be approved by SEGUMAR Offices as per Resolution MEPC.127(53) of July 22, 2005 as amended by Resolution MEPC.306(73) dated October 26, 2018, therefore approval copy or the correspondent Statement of Ballast Water Management Plan issued by this Administration, should be available in our records. In case of those ships with an approved BWMP as per the guidelines of Resolution A.868(20) of 1997, by a duly approved Recognized Organization, evidence of such approval and the BWMP shall be uploaded on E-SEGUMAR web site (ej. BWMP should have completely reflecting approval as per Resolution A.868(20). In these cases where RO's stamped seal do not reflect approval as per Resolution A.868(20), the RO should provide an attestation or statement letter confirming that BWMP has been approved under the aforementioned Resolution; copy of that letter shall be attached to the BWMP. The above will be verified by this administration, with the evaluation of the BWMP developed under IMO Resolution A.868 (20).

- 7.8. The fee for the issuance of the Full-term IBWMC is USD 300.00. (No handling fees should apply in case of payments made through the Merchant Marine Qualified Consulates, as per Resolution JD No.002-2017 of 26 January 2017).

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- 7.8.1.** The fee for Modifications or Reissuance of the Full-term IBWMC is USD 300.00. (This will apply in the following cases: (Ej. Ship's Name Change, Call Sign, Gross Tonnage, Method of Ballast, Ballast Water Capacity etc.).
- 7.8.2.** New application should be placed through the following link: [SEGUMAR 2.0](#) in order to apply for any cases of the above paragraphs (7.8, 7.8.1).
- 7.9.** International Ballast Water Management Certificates (IBWMC), issued from **June 1, 2022**, will be valid until the expiry date of the Cargo Ship Safety Construction Certificate, to ensure alignment with the remaining statutory certificates (Refer to "five- year period" meaning indicated in Res. A.1156 (32) – Survey Guidelines under the Harmonized System of Survey and Certification (HSSC), 2021). Therefore, Recognized Organizations are urged to include the date of validity of the Cargo Ship Safety Construction Certificate as well as the IBWMC anniversary date within the Survey Status Report related to the Ballast Water Management Convention. In each case the Full-term IBWMC shall not exceed the five (5) years period of validity.
- 7.10.** Since the entry into force of the International Ballast Water Convention 2004, de- harmonization of the IOPP Certificate should not be conducted. The IOPP link to the IBWMC is in terms of reference for the installation of the Ballast Water Treatment System (D-2 standard compliance) which is aligned to the IOPP Certificate Renewal Survey (Refer to Paragraph 4.8 above).
- 7.11.** Given the approval by the IMO of a new consolidated text of unified interpretations to the BWM Convention during MEPC 79 session – BWM.2/Circ.66/Rev.5 dated July 13, 2023 the contingency measures and other ballast water management methods used in addition to D-2 will only be reflected in the ship's Ballast Water Management Plan (BWMP).
- 7.12.** Therefore, even if the ship is also using other ballast water management methods as contingency measures, the ships fitted with a BWMS will be certified in accordance with the D-2 standard as the principal ballast water management method employed on the ship. Certificates already issued will be updated at the opportunity of the next survey endorsement reported to this Administration to align the IBWMC to the unified interpretations indicated in the previous paragraph, and to ensure compliance with amendment to appendix I – form of the International Ballast Water Management Certificate (Resolution MEPC.325(75) adopted through Resolution No.107-OMI-247- DGMM dated December 14, 2021).

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8. Applications for Recognition

- 8.1. Recognized Organizations interested in conducting surveys and issuing Interim certificates in accordance with the BWM Convention, should apply directly to the Merchant Marine General Directorate.
- 8.2. The Recognized Organizations interested to obtain authorization from this Administration should apply directly to the Merchant Marine General Directorate, according to Resolution No.106-023-DGMM dated May 18, 2022, article 3.
- 8.3. The issuance of Interim certificates by the Recognized Organizations does not require the payment of additional fees.
- 8.4. Endorsement of corresponding Annual or Intermediate Surveys shall be carried out by the Recognized Organization duly approved to do so, after satisfactory completion of the same, as it is required by the Convention (Regulation E-1).
- 8.5. The IBWMC endorsements by the Recognized Organizations are subject to the fees indicated in our Resolution J.D. No. 076-2021 dated October 28, 2021, amended by Resolution J.D. No. 011-2022 dated February 24, 2022.

9. Certificate Endorsement

- 9.1. Endorsement of the IBWMC issued by the Administration (electronic Full-term IBWMC) shall be carried out by the Recognized Organization surveyors nominated for this purpose at the completion of the correspondent survey on board the ship and on the printed version.
- 9.2. The information of the Responsible surveyor, RO, place, date and other information required to be inserted on the endorsement spaces shall be communicated by the RO no later than 30 days after conducting the survey by sending an e-mail to ibwmc@segumar.com or any of the nearest Segumar offices of your convenience, which email you can find on the MMN-18/2021. in order to update this information on the system and on the electronic Full-term IBWMC. The certificate will be updated by this Administration at the earliest opportunity, therefore manual endorsement or electronic version of the endorsement shall be considered as valid.
- 9.3. Onboard shall remain the endorsement pages left by the surveyor who carried out the periodical or additional survey and the validation of such endorsement as well as authentication of the certificate can be done through the query certification system on Platform E-Segumar or scanning the QR code which will reflect update information of surveys and certification carried out.

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- 9.4. **It is strongly recommended** that the Recognized Organization, that carried out the Initial Survey, and issued the Interim Certificate (from 1 August 2020), be the same Recognized Organization to endorse the subsequent surveys of the IBWMC (Full Term issued by the Administration) in order to maintain validity of the Certificate.
- 9.5. Those operators or ship-owners, who decide to transfer the ship of Recognized Organization, shall have regard to the procedure for Transfer of Statutory and Class Certification, described in MMC-307. In case that endorsement of the International Ballast Water Management Certificate is carried out by a different RO at ship-owner or ship-operator request, this Administration shall be informed at the earliest opportunity.
- 9.6. In cases where extension is authorized under regulations E-5.5 or E-5.6, the RO shall report to this Administration according to 9.2 above.

10. Overdue Annual/Intermediate Surveys and Revalidation of IBWMC:

- 10.1. A certificate will cease to be valid if the annual/intermediate surveys are not completed within the periods specified in Section E, Regulation E-1 of the Convention. In such cases, authorization may be given to allow the **revalidation of the certificate**, as per the RO's procedures to conduct the appropriate survey.
- 10.2. For revalidation purposes an appropriate survey must be done and should consist of the requirement of the survey that was not carried out, but its thoroughness and stringency should have regard to the time this survey was allowed to lapse.
- 10.3. After completion of survey the surveyor on board shall write down "This certificate was revalidated after completion of the corresponding survey in accordance with (PMA authorization Ref.xxx)" at the left side blank space of endorsement and endorsed with Signed, Place and Date on the certificates (refer to paragraph 7.1 above).
- 10.4. In case that the certificate it's necessary to be re-issued due to ships' name change, an application for a new Certificate must be made through the new platform [SEGUMAR 2.0](#). The new certificate will be issued with the same validity as the previous Full-term IBWMC.
- 10.5. According to regulation E-5.8 if an annual survey is completed before (in advance) the period specified in regulation E-1, then an amendment of the anniversary to a date which shall not be more than three months later than the date on which the survey was completed shall be endorsed on the Certificate, to ensure that the subsequent annual or intermediate survey

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required by regulation E-1 shall be completed at the intervals prescribed by that regulation using the new Anniversary date. In these cases, the Certificate expiry date may remain unchanged provided one or more annual surveys, as appropriate, are carried out so that the maximum intervals between the surveys prescribed by regulation E-1 are not exceeded.

- 10.6.** The updated status of the Full-term International Ballast Water Management Certificate (Full-term IBWMC) must be included, in the “Ship Status Report” prepared by the Recognized Organization.
- 10.7.** There might be BWMS malfunctions not affecting the operation, in consequence not leading to a conditional certificate; however, the Administration shall be notified as soon as the malfunction occurs, and the time taken to return the BWMS to its full normal operation. Malfunctions leading to a Conditional certificate might affect or not the endorsement period, in such cases that a conditional certificate validity coincides with the closing of the window period for the applicable endorsement, then to restore the Full-term validity a revalidation should be conducted not later than the expiry date of the conditional certificate.
- 10.8.** When a Conditional BWM Certificate is issued due to BWMS malfunctions, this Administration must be notified immediately upon restoration of normal BWMS function. No new interim BWM certificate is required to be issued by the RO after functionality is restored.

11. Special Considerations

- 11.1.** As per results discussion of proposal made to the Marine Environmental Protection Committee (MEPC) during its session 71, regulation B-3 is applicable to top side tanks and cargo holds of bulk carrier ships. Considering that all tanks/ holds containing water taken on board to control trim, list, draught, stability or stresses of the ship, regardless of ballast water discharge intentions should be recorded.
- 11.2.** In case that conditional certificate (Conditional IBWMC) it is required please refer to our Merchant Marine Circular No.156 and 324.
- 11.3.** Authorizations will be limited to specific periods of validity according to exceptional circumstances or according to the temporary measures already approved by this Administration.

12. Ballast Water Record Book

- 12.1.** Following the outcome of MEPC 80, the Marine Environment Protection Committee, through BWM.2/Circ.80/Rev.1, adopted “Guidance on Ballast

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Water Registration and Reporting” to clarify the registration and reporting process under the BWM Convention. The BWM Convention, which includes guidance on completing the Ballast Water Record Book and an updated example of a ballast water notification form.

The BWRB is to be updated in accordance with IMO [Resolution MEPC.369 \(80\)](#), adopted on July 7, 2023, as amended by Appendix II. The formal entry into force of the BWRB will be February 1, 2025; however, we encourage the use of the attached form to familiarize the crew with the new information to be recorded.

- 12.2.** You will find as Appendix to this Merchant Marine Circular the different scenarios for entries in the BWRB according to examples given in [BWM.2- Circ.80/Rev.1](#).
- 12.3.** In the MMC-193 contains the minimum requirements for the Ballast Water Record Book (BWRB).
- 12.4.** In the BWMP should be updated in the recording requirements section, it is necessary to specify that the guidance (BWM.2/Circ.80/Rev.1) which provides sample entries of an amended BWRB.

March, 2026 – Paragraphs 6.11, 6.12, 6.13 & 6.14 were deleted due to duplicity. In addition, paragraph 6.10 was amended.

January, 2026 – Paragraphs 6.2, 7.5, 7.8.2 and 10.4 were amended.

April, 2025 - amended paragraph 9.2.

February, 2025 - Added paragraph 12.3; amended paragraph 12.1, 12.2, 12.4.

November, 2024 – Added paragraph 2.9, 2.15, 3.8, 6.11, 6.12, 6.13 and 10.8; updated the reference to the IMO ballast circular on paragraph 7.11; amended paragraph 7.2, 9.2, 9.3 and 12.1. Updated the references.

September, 2023 – Corrections to the appendix of the Merchant Marine Circular (Page 1 example 4, Page 2 example 4 and Page 2 example 6).

August, 2023 – Amendment to paragraphs 12.1 and 12.2. Revised Appendix, Example Ballast Water Record Book.

July, 2023 – following points added: reference p), 2.7, 3.7, note after 4.1.3, 7.11, 10.7 and 12. Following points amended: reference m) and o), 5.1.4, 6.7, 10.4, 10.5 and 10.6. Previous 11.1 deleted.

July, 2022 – Reference o) added. Paragraphs 6.10, 7.4, 7.6, 7.10, 8.2 and 8.5 amended. Paragraphs 7.11 and 9.5 added.

June, 2022 – references m) and n) added. The following paragraphs amended for clarity and updating purposes: 5.1.2, 6.1, 6.5, 6.6, 7.7 *note, 7.9.

March, 2022 – Renumbering 3.5 and after point 9; amendment to the following points 5, 5.1, 5.1.1, 5.1.4, 5.1.5, 6, 6.9, 6.10, 7.9, 9.1, 9.2, 9.4, 10; reference l) and points 10.5 and 11.4 added; 5.1.6 deleted.

March, 2021 – paragraph 6.8.2 and 6.9 amended.

July, 2020 – section 2, 4.1.1 to 4.1.3 added; 4.1, 6.9, 7.2, 7.3, 7.7.1, 7.9, 8.1, 8.3, 9.1, 9.2, 9.4.4, 9.5; points 8.2, 8.3 deleted; following points reference updated 4.5.2, 4.5.3, 4.5.4, 4.8.3, 4.8.4, 6.5, 6.8.3; previous point 3.9 renumbered as section 5.

March, 2020 – paragraphs 1. Minor correction1, 3.8 amended for further clarification and



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3.8.1 to 3.8.6 added; 4.7 email address amended.

December, 2019 – paragraph 3.8 amended for clearer instruction.

October, 2019 – amendment to 2.2, 2.2 a), 2.4, 4.9, 7.1 and text of 2.5, 3.8, 5.10 added,

December, 2018 – 3.4 amended; a), b) and c) of 6.8 deleted; 6.8 amended and renumbered; 6.10 and 6.10.1 deleted and renumbering; point 7 inserted, paragraphs in this point renumbered and amended, text 7.4.3 inserted, paragraph 8.5 added.

July, 2018 – New paragraphs 6.7, 6.8, 6.9 and 6.10 added.

July, 2018 - amendment of the following paragraph: 6.6.1, inclusion of paragraph 6.6.1 a, b, c, inclusion of paragraph 6.2, paragraph 6.3 and 6.4 change of numeration.

May, 2018 – amendment of the following: paragraph 2.3.b, 4.3, 4.4, 4.6, 4.8.1, 4.8.2, inclusion of paragraph 4.8.3, amendment of paragraph 5.6, 5.7.3 asterisk note, inclusion of paragraph 5.8.1, 5.8.2, inclusion of paragraphs 6.1.1, 6.1.2, 6.1.3.

September, 2017 - amendment of the following: reference “f”, paragraphs 1.1, 3.4, 4.4, 4.5, 4.9, asterisk note, 5.9 and 7.1. New paragraph added 6.6.

July, 2017 – reference f), amendment to paragraphs 1.1, 1.2, 2.2 a), 4.2, 4.4, 4.7, 5.8, 7.1; paragraphs 1.3, 3.4, 3.5, 3.6, 3.7, 7.4.

March, 2017 – 4.1, 4.6, asterisk note, 7.2 amended, and 4.9 added.

February, 2017.

Inquiries concerning the subject of this Merchant Marine Circular or any other request should be forward to:

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Phone: (507) 501-5090

E-mail: ibwmc@segumar.com for Certificates, or bwmp@segumar.com for Plan Approval.

Website: <https://panamashipregistry.com/circulars/>



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